

Raj Bahadur v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 July 2019 · Writ - C No. 27112 of 2006 · **Writ dismissed; relegated to CGRF and Ombudsman.**

HEADNOTE

A writ attacking a 2006 recovery certificate for electricity arrears was dismissed because the consumer had a statutory alternative remedy before the Consumer Grievance Redressal Forum and Ombudsman under para 7.10(i) of the Electricity Supply Code, 2005 read with the UPERC (CGRF & Ombudsman) Regulations, 2003.

FACTUAL SUMMARY

Raj Bahadur, a consumer, challenged a recovery certificate dated 20 March 2006 issued by the Executive Engineer after a demand notice of 3 February 2006. An order dated 13 July 1998 recorded that he had defaulted in electricity dues. Some payments were later made and, on his request, he was permitted to pay the outstanding amount in instalments, but the record did not show that the entire dues had been cleared. Counsel for the State and for respondent no. 4 were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10(i)

alternative remedy for bill dispute

HOLDING

A writ challenging an electricity bill and the recovery certificate issued on it will not be entertained where the consumer has a statutory alternative remedy before the Consumer Grievance Redressal Forum and thereafter the Ombudsman under para 7.10(i) of the Electricity Supply Code, 2005 read with the UPERC (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003, and para 7.10(iv) of those Regulations. The petition was dismissed on that ground. ¶ 3-4

FLAG Court cites para 7.10(i) of Code, 2005 for CGRF (not 6.7) and para 7.10(iv) of Regulations, 2003 for Ombudsman; clause numbering as stated, not corrected.

PRINCIPLE TAGS

installment-payment-clause-6.14 A writ attacking a 2006 recovery certificate for electricity arrears was dismissed because the consumer had a statutory alternative remedy before the Consumer Grievance Redressal Forum and Ombudsman under para 7.10(i) of the Electricity Supply Code, 2005 read with the UPERC (CGRF & Ombudsman) Regulations, 2003. ¶ 3-4

clause-7.10-forum-ombudsman-route-for-billing-grievances A writ attacking a 2006 recovery certificate for electricity arrears was dismissed because the consumer had a statutory alternative remedy before the Consumer Grievance Redressal Forum and Ombudsman under para 7.10(i) of the Electricity Supply Code, 2005 read with the UPERC (CGRF & Ombudsman) Regulations, 2003. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY DUES HAD IN FACT BEEN PAID IN FULL, AND THE VALIDITY OF THE DEMAND NOTICE AND RECOVERY CERTIFICATE, WERE NOT DECIDED ON MERITS.

¶ 2-4

